

Husna Bano v. State of U.P. & 9 Others

Allahabad High Court · Division Bench · 13 August 2019 · WRIT - C No. 26569 of 2019 · **Writ petition allowed (refusal set aside; application to be reconsidered on the indemnity bond + ID proof)**

HEADNOTE

A tenant/occupier who cannot obtain the landlord's NOC (here, amid a landlord-tenant and succession dispute) is entitled to a fresh electricity connection on furnishing an Indemnity Bond under Annexure 4.2 of the U.P. Electricity Supply Code, 2005; proof of possession may be shown by a Ration Card and Aadhaar (rent often being paid in cash, a rent receipt may not exist). The indemnity bond is not a document of title and the grant of a connection does not bar an eviction suit, so a landlord's refusal of NOC is no ground to deny supply. Section 43(1) casts a statutory duty to supply an owner or occupier.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant/occupier's connection on an indemnity bond amid a landlord-tenant dispute

QUESTION

Can a tenant be denied a fresh connection for want of the landlord's NOC where she has furnished an indemnity bond and proof of possession (Ration Card/Aadhaar)?

HOLDING

No. Annexure 4.2 (Clause 4.4) enables an occupier who cannot obtain the owner's NOC to obtain a connection on an indemnity bond; possession can be shown by a Ration Card and Aadhaar (cash rent often leaving no receipt). The bond is not a document of title, and a connection does not bar an eviction suit; the landlord's refusal of NOC is no ground to deny supply. Refusal set aside and remitted for reconsideration. ¶ 5-8

LIMITING FACTS

After the landlady's death, her heirs (in a succession dispute) got the old connection cancelled and refused an NOC; the tenant furnished an indemnity bond (Annexure 4.2) plus Ration Card and Aadhaar.

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond

A tenant/occupier unable to obtain the owner's NOC may obtain a connection on an indemnity bond (Annexure 4.2); the bond is not a title document, and a landlord-tenant/succession dispute is no ground to deny the basic necessity of electricity. Lead authorities: *Gaurav Sharma v. State of U.P.* [56197396], *Chandu Khamaru v. Nayan Malik*. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LANDLORD-TENANT / POSSESSION DISPUTE

Possession as tenant or otherwise was treated as a question of fact for the competent civil court; the connection does not bar the pending eviction/injunction suit. ¶ 5-6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Gaurav Sharma v. State of U.P. & Others</i> Writ-C No. 8396 of 2018 (Allahabad HC, DB) [56197396] Allahabad High Court (DB)	A genuine occupier has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; a family dispute is no ground to refuse. [SCJ-027 in this corpus.]	Followed (its paragraph 9 quoted) as directly governing. ¶ 7	Court	Followed
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation</i>	Section 43(1) casts an affirmative duty to supply an owner or occupier;	Relied on (through <i>Gaurav Sharma</i>) for the s.43(1) obligation. ¶ 7	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ltd.</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) [864936] Allahabad High Court (DB)	the indemnity bond (Annexure 4.2) covers the case where the occupier cannot produce the owner's consent.			
<i>Chandu Khamaru v. Smt. Nayan Malik</i> AIR 2011 SC 2897 Supreme Court	Under Section 43(1), a distribution licensee has a statutory duty to supply an owner or occupier who applies, and a family dispute does not deprive a person of a connection.	Relied on (through Sushama Chowdhary/Gaurav Sharma) for the occupier's statutory right. ¶ 7	Court	Relied on